

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #06	CCRB Case #: 201804234	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/11/2017 12:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/11/2018	Precinct: 61		
Date/Time CV Reported Tue, 05/29/2018 1:04 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/29/2018 5:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Leonard Craig	04248	958206	061 PCT
2. POM Anton Morgulets	18215	958952	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Leonard Craig	Abuse: Detective Leonard Craig made a sexually suggestive remark to § 87(2)(b)	A . Unsubstantiated
B . DTS Leonard Craig	Abuse: Detective Leonard Craig forcibly removed § 87(2)(b) to the hospital	B . Exonerated
C . POM Anton Morgulets	Abuse: Police Officer Anton Morgulets forcibly removed § 87(2)(b) to the hospital	C . Exonerated

Case Summary

On May 29, 2018, § 87(2)(b) called the CCRB regarding case number § 87(2)(b) and filed this complaint. § 87(2)(g)

On April 11, 2017, at approximately 12:20 a.m., § 87(2)(b) called 911 twice to report a man with a gun outside her home, located at § 87(2)(b), in Brooklyn, and to report another man who broke into her house. Det. Leonard Craig and PO Anton Morgulets of the 61st Precinct responded to § 87(2)(b) house. Det. Craig told § 87(2)(b) “Once you go black, you never go back,” (**Allegation A: Abuse of Authority**, § 87(2)(g) Det. Craig and PO Morgulets called for an ambulance to respond to the location. Det. Craig and PO Morgulets told § 87(2)(b) that she needed to go to the hospital, and that if she did not go voluntarily, they would take her by force. PO Morgulets and Det. Craig called EMS who removed § 87(2)(b) to § 87(2)(g) (**Allegations B and C: Abuse of Authority**, § 87(2)(g)

There was no video footage of this incident. § 87(2)(b) was not arrested or issued a summons as a result of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Leonard Craig made a sexually suggestive remark to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) provided a statement over the phone when reporting this incident on May 29, 2018 (Board Review 01), was interviewed at the CCRB on June 8, 2018 (Board Review 02), and provided additional information over the phone June 11, 2018 (Board Review 03). On April 11, 2017, at approximately 12:20 a.m., § 87(2)(b) called 911 and requested that officers respond to her home located at § 87(2)(b), in Brooklyn, after observing a man outside her window with a gun. § 87(2)(b) called 911 a second time after she believed she heard the man climb into her window and into her house. Det. Craig and PO Morgulets responded to the location twice. During her initial statement regarding this incident (Board Review 01), § 87(2)(b) stated that Det. Craig told her, “Once you go black, you never go back,” and described him as a black male detective, approximately 55 years old, with a heavy build, and in uniform. During her interview at the CCRB (board Review 02), § 87(2)(b) was unsure if an officer made this statement during this incident or during a different incident. During the phone call on June 11, 2018 (Board Review 03), § 87(2)(b) stated that she was wrong during her interview and that her initial statement was correct.

Det. Craig was interviewed at the CCRB on August 21, 2018 (Board Review 04). Det. Craig’s memo book (Board Review 05) noted that he responded to § 87(2)(b), in Brooklyn, twice, once for a report of a man with a gun, and once for a report of a burglary, but he only remembered responding for the call regarding a burglary. Det. Craig never told § 87(2)(b) “Once you go black, you never go back.” Det. Craig denied making any sexually

suggestive remarks to § 87(2)(b). At the time of this incident, Det. Craig was § 87(2)(b) old and in uniform. § 87(2)(b)

PO Morgulets was interviewed at the CCRB on August 8, 2018 (Board Review 06). PO Morgulets' statement was consistent with Det. Craig's statement.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Anton Morgulets forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Abuse of Authority: Detective Leonard Craig forcibly removed § 87(2)(b) to the Hospital.

It is undisputed that § 87(2)(b) was transported to the hospital. It is undisputed that § 87(2)(b) was not restrained at any point. It is undisputed that no physical force was used against § 87(2)(b).

§ 87(2)(b) (Board Reviews 01-03) stated that her mother, § 87(2)(b) § 87(2)(b) was asleep throughout the entire incident and had no interaction with officers. § 87(2)(b) stated that she only interacted with officers outside of the house. Det. Craig and PO Morgulets responded once and refused to take a report for § 87(2)(b) and left the location. As noted above, § 87(2)(b) called 911 a second time, prompting Det. Craig and PO Morgulets to respond again. § 87(2)(b) was running around, banging on her neighbors' doors, asking them to let her in. Det. Craig and PO Morgulets called for an ambulance to respond to the location and told § 87(2)(b) that she had to go to the hospital, or else they would force her to go. § 87(2)(b) agreed to go to the hospital. Officers did not restrain or use force against § 87(2)(b). § 87(2)(b) refused to provide the name of the hospital that she was transported to and refused to sign HIPPA release forms. § 87(2)(b)

Det. Craig (Board Review 04) rang the doorbell of § 87(2)(b) house and § 87(2)(b) § 87(2)(b) opened the door. § 87(2)(b) § 87(2)(b) stated that there was no one in the house. Det. Craig and PO Morgulets inspected the house, but did not find any signs of a burglary or anyone else inside the house aside from § 87(2)(b) and § 87(2)(b) § 87(2)(b) § 87(2)(b) told the officers that § 87(2)(b) made a lot of fake complaints. § 87(2)(b)

§ 87(2)(b) was acting erratic, changing the volume of her voice and changing the topic of conversation randomly. § 87(2)(b) never pointed out any civilians as the individual who broke into her home. The officers called EMS to have § 87(2)(b) transported to the hospital, but Det. Craig did not remember who made that decision. Det. Craig did not recall § 87(2)(b) being resistant to going to the hospital. Det. Craig denied that any officer told § 87(2)(b) that she would be forced to go to the hospital if she did not go willingly. EMS arrived and transported § 87(2)(b) to § 87(2)(b). § 87(2)(b) did not have to be restrained to be transported to the hospital.

As noted above, Det. Craig's memo book (Board Review 05) noted that he responded to § 87(2)(b) residence once regarding a report of a man with a gun, and once for a report of a burglary. Det. Craig noted that there was no burglary.

PO Morgulets (Board Review 06) and Det. Craig canvassed the area around § 87(2)(b), in Brooklyn, and determined that there was no burglary. After checking the exterior of the house, PO Morgulets spoke with § 87(2)(b) § 87(2)(b) who told him that § 87(2)(b) was lying and had an "EDP" history. PO Morgulets did not remember exactly what § 87(2)(b) § 87(2)(b) said regarding § 87(2)(b) "EDP" history. PO Morgulets and Det. Craig called for an ambulance to respond to the location and take § 87(2)(b) to the hospital, but PO Morgulets did not remember who called specifically. The officers called because § 87(2)(b) § 87(2)(b) had an EDP history, appeared disoriented, and was talkative and verbally combative. Additionally, the officers did not know if § 87(2)(b) was taking medication or could care for herself. PO Morgulets was not able to tell if § 87(2)(b) was going to harm herself at the time of the incident. PO Morgulets had no idea if § 87(2)(b) was going to harm someone else during the incident. Once the ambulance was called, § 87(2)(b) began screaming at the officers saying that she was not going to the hospital and that there was nothing wrong with her. EMS arrived and spoke with § 87(2)(b) and then transported her to § 87(2)(b). § 87(2)(b) did not have to be restrained to be transported to the hospital.

PO Morgulets' memo book (Board Review 07) noted that he responded to § 87(2)(b) residence, once regarding a report for a man with a gun, and once for a report of a burglary. He also noted that there was no man with a gun and no burglary.

§ 87(2)(b)

An emotionally disturbed person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others. If the EDP is unarmed, not violent, and is willing to leave voluntarily, they may be taken into custody without the specific direction of a supervisor. Officers should request an ambulance if one has not already been dispatched, Patrol Guide Procedure 221-13, "Mentally Ill or Emotionally Disturbed Persons," (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This was § 87(2)(b) second complaint with the CCRB (Board Review 10).
- This was the first CCRB complaint filed against Det. Craig over his 26-year tenure with the NYPD.
- PO Morgulets had one previous allegation stemming from one complaint over his three-year tenure with the NYPD. PO Morgulets has one other open complaint under CCRB case number 201805151, which is still under investigation. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(g)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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